

« back omissions of the defendant officers and Dr. Feigin, and cited the Blount case. The defendants renewed their motions to dismiss for failure to state a claim, and the court granted the motions. The court denied Judge's motion to reconsider and her motion for leave to file a Fourth Amended Complaint. Having dismissed the federal claims set forth in Counts I and II, the court declined to exercise supplemental jurisdiction over the two remaining state law causes of action (Counts III and IV) and dismissed them as well.

II. DISCUSSION

14 Judge argues on appeal that the district court erred in dismissing her Third Amended Complaint. We conclude that the district court properly dismissed Counts I and II of Judge's Third Amended Complaint and, having done so, properly dismissed the remaining state law claims. Judge also challenges the denial of her motion for leave to file a Fourth Amended Complaint. We conclude that the court did not abuse its discretion in denying that motion.

A. Dismissal of the Third Amended Complaint

15 We review the disposition of a motion to dismiss *de novo*. See *LaChapelle v.* [REDACTED] short and plain statement of the claim showing that the pleader is entitled to relief." Fed.R.Civ.P. 8(a). In an oft-quoted gloss, the Supreme Court stated over forty years ago that a complaint should not be dismissed for [REDACTED] it appears beyond doubt that the plaintiff can prove no set of facts in support of his claim which would entitle him to relief." *Conley v.* [REDACTED]

16 Notwithstanding *Conley*, this circuit and others have held that in civil rights cases such as the present, a bare conclusory allegation of the critical element of illegal intent, including of an intent to discriminate, is insufficient. We have required the [REDACTED] allege particulars sufficient to sanction a factfinder in drawing a reasonable inference of intentional disparate treatment based on race." The [REDACTED] another way, the element of illegal motive must be pleaded by alleging specific non-conclusory facts from which such a motive may reasonably be inferred, not merely by generalized asseveration alone. See *Correa-Martinez v. Arrillaga-Belendez*, 903 [REDACTED] identify the particular instance(s) of discriminatory treatment and, as a logical exercise, adequately support the thesis that the discrimination was unlawful").³

17 The above-mentioned cases in this circuit predate the Supreme Court's decision in *Leatherman v. Tarrant County Narcotics Intelligence and Coordination Unit*, 507 [REDACTED] (1998). As the district court relied upon the earlier First Circuit caselaw in determining that the Third Amended Complaint was legally inadequate, we must decide whether the requirement stated in those cases survives *Leatherman* and *Crawford-El*. Based particularly on the Court's dicta in *Crawford-El*, *infra*, we believe that it does, at least in a case like the present alleging a constitutional violation calling for proof of an illegal motive. We also believe, contrary to Judge's contentions, that the district court did not err in its manner of applying our precedents to the Third Amended Complaint.

18 Were *Leatherman* the Supreme Court's last and only word, we would be less certain of the correctness of our refusal, in circumstances like the present, to accept purely conclusory pleading on the element of discriminatory intent.⁴ In

[REDACTED]

prediscovery motion for dismissal or summary judgment." *Id.* (quoting in part « bac [REDACTED] if the official chooses not to plead the affirmative defense of qualified immunity." [REDACTED])

24 Judge's Count I section 1983 claim rests upon allegations of unconstitutional motive (i.e., intent to discriminate because of race) on the part of several defendants sued in their individual capacities. See *infra*. In *Crawford-El*, the Supreme Court recognized that claims against individual public officials have the potential to subject them to burdensome discovery and trials and stated that district judges may dispose of such claims prior to permitting any discovery where a [REDACTED] nonconclusory factual allegations that establish improper motive." [REDACTED] (emphasis provided). We conclude, therefore, that the five Justices writing for the Court in *Crawford-El* permitted an approach similar to ours in *Dartmouth Review* and *Correa-Martinez*, calling for the pleading of specific facts from which to infer illegal motive--although the Court limited its carefully-phrased endorsement of that [REDACTED] precisely involves an action under section 1983 against state officials in their individual capacities requiring plaintiff to prove improper motive, see *infra*, we regard the majority's carefully-fashioned dicta in *Crawford-El* as allowing the continued use here of the standard reflected in this circuit's previous caselaw and applied below.¹⁰

25 We therefore examine Count I of Judge's Third Amended Complaint to determine whether it meets the standard permitted in *Crawford-El* ("specific, nonconclusory factual allegations that establish that defendant acted based upon an improper motive"), a standard, as we say, similar to that articulated by this circuit in *Dartmouth Review* and progeny.¹¹ In so applying that standard, we bear in mind that, in Count I, Judge alleged that the federal right she was denied was the right to equal protection of the laws under the Fourteenth Amendment. One who asserts that governmental action violates the Equal Protection Clause must show that he or [REDACTED] ("The central purpose of the Equal Protection Clause of the Fourteenth Amendment is the prevention of official conduct discriminating on the basis of race."). In order to state a claim under the Equal Protection Clause, a plaintiff must allege not only that the defendants were aware of her race at the time of their actions, but also that defendants acted because of her race. See *Personnel Administrator v. Feeney*, 442 [REDACTED] therefore, a key element of proof in the instant case, entitling the district court to demand, as already said, that such motive be pleaded not just conclusorily but by specific, nonconclusory factual allegations giving rise to a reasonable inference of racially discriminatory intent. See *Dartmouth Review*, 889 F.2d at 16.

26 Judge alleges in Count I that the defendants¹³ failed to carry out various duties in connection with the discovery of Weems's body and the investigation of Weems's death. First, Judge alleges that the defendants failed to notify her of Weems's death [REDACTED] person."¹⁴ Second, Judge alleges that the government officials--the officer defendants and Dr. Feigin--failed, respectively, to conduct an adequate homicide investigation and prepare a proper autopsy report, despite the existence of [REDACTED]

when she sought information concerning Weems's death. Judge alleges that all of these omissions occurred because she is black.¹⁵ In sum, Judge alleges a double standard whereby deaths of black persons that occur under suspicious circumstances are treated differently (i.e., less seriously) than deaths of white persons under similar circumstances, and that the families of the black decedents are injured by this disparate treatment.¹⁶

27 Associated with the above, Judge made several other more specific assertions: First, that when Judge confronted Dr. Feigin and Officer Chevalier approximately six weeks after Weems's death, they failed to provide her basic and accurate information concerning the circumstances of Weems's death and engaged in rude, insulting and unprofessional behavior. Second, Judge alleges that Officer Chevalier "insinuated" that she knew the street names for certain drugs. Third, Judge alleges that her allegation of disparate treatment based on race is supported by the facts of the Kasha Blount case, a state court proceeding reported in the newspaper which involved a black teenager who died in Dorchester under suspicious circumstances and an allegedly mishandled autopsy performed by Dr. Feigin. Neither separately nor taken with the others, however, do these alleged facts give rise, by themselves, to a reasonable inference that defendants were motivated by racial considerations.

28 State actors will, of course, violate the Equal Protection Clause if they deliberately and selectively deny protective services to the members of a disfavored minority.

[REDACTED] juxtaposing the fact of one's race with an instance of discrimination is insufficient to state a claim." Id. at 19. In Dartmouth Review, white student editors of an off-campus newspaper who were suspended following a confrontation with a black professor brought a civil rights action against the college and various college officials, alleging that their suspension was racially motivated. The district court dismissed their complaint for [REDACTED] some meaningful, fact-specific allegation of a causal link between defendant's conduct and plaintiff's race, the complaint's first count cannot stand." Id. Thus, to survive a motion to dismiss Count I, Judge must set forth specific factual allegations supporting a causal link between defendants' conduct and her race.

29 [REDACTED] facts adequate to show or raise a plausible inference that [Judge] was subjected to race-based discrimination." Dartmouth Review, 889 F.2d at 17. Judge alleges that the officer defendants failed to notify her of Weems's death because she is black. But the mere conclusory assertion that the failure to notify was racially motivated is not enough. She further alleges that Dr. Feigin and the officer defendants failed to conduct, respectively, a proper autopsy and an adequate homicide investigation because she is black. But such errors, like the failure to notify, do not by themselves necessarily imply racial animus, and the mere conclusory allegation of such will not suffice.

30 The only factual allegations in the complaint that, liberally read, might be arguably construed as implying any racial animus toward Judge are that Dr. Feigin was rude to Judge and that Officer Chevalier was insensitive and "insinuated" that Judge should know the street names of certain drugs. But we think these fall short of indicating that race was a causal factor. The rudeness and insensitivity might have resulted from any of a host of factors, including irritability, defensiveness in the face of criticism, dislike for suspected drug users, their friends and families, or simple arrogance.

31 [REDACTED] identify the particular instance(s) of discriminatory treatment and, as a logical exercise, adequately

support the thesis that the discrimination was unlawful." Correa-Martinez, 903 F.2d at 53. The allegations concerning the behavior of Dr. Feigin and Officer Chevalier during their conversations with Judge, if true, undoubtedly evince rude and unprofessional conduct. But rude and unprofessional conduct are, unfortunately, all too prevalent in the world. Persons from any racial background may sometimes encounter it. That behavior without more--reprehensible as it is--falls short of creating a reasonable inference that Judge's race--as opposed to other factors--was a motivating factor in defendants' alleged responses subsequent to Weems's death. Were we to hold otherwise, any unsatisfactory dealings between a public official and a minority, female or other citizen falling into a protected category would give rise, prima facie, to a potential equal protection claim.

32 We recognize that it will be the rare case in which a plaintiff can point to specific racist statements made by government officials. Intent to discriminate may be demonstrated by circumstantial evidence. See *Washington v. Davis*, 426 U.S. 229, [REDACTED] adequately support the thesis that defendants' omissions were motivated, at least in part, by racial animus. Here, where after-the-fact rude behavior and a single "insinuation" are not tied to other allegations of fact that support the thesis that black deaths and white deaths are treated differently by the police and medical examiner in Lowell, that support is lacking.

33 The rule that we accept plaintiff's well-pleaded factual averments and indulge [REDACTED] not entitle a plaintiff to rest on 'subjective characterizations' or conclusory descriptions of a 'general scenario which could be dominated by unpleaded facts.' " *Id.* at 53 (quoting *Dewey v. Univ.* [REDACTED] died in Dorchester, Massachusetts in 1990 under allegedly suspicious circumstances and whose autopsy report was apparently prepared by Dr. Feigin, does not cure the lack of specificity with regard to improper motive in her complaint. We repeat what we said in *Dartmouth Review*:

34 It is apodictic that evidence of past treatment toward others similarly situated can be used to demonstrate intent in a race discrimination suit. To put flesh upon the bare bones of this theory, appellants' obligation was to identify and relate specific instances where persons situated similarly 'in all relevant respects' were treated differently ...

35 889 F.2d at 19 (citations omitted). Blount's death was investigated by the Dorchester Police Department. There is no allegation that the Lowell Police Department was involved. Thus, with respect to the officer defendants, the [REDACTED] Feigin, even assuming he mishandled the Blount case, there is only the opinion of Blount's mother, as stated in the press, to suggest any racial motivation behind Dr. Feigin's alleged failings in the Blount case.

36 Judge asks us to view defendants' behavior in the total context of the various alleged omissions on the part of defendants, including their failure to notify Weems's family members and the allegedly improper investigation and autopsy. But we do not find the totality of circumstances sufficient to make out her constitutional claim. Her allegations boil down to inept, sloppy police and coroner performance at the time of Weems's death followed by rude, defensive behavior by the same officials some weeks later when Weems's family complained. That

combination of interrelated, offensive events falls short of raising a reasonable inference of racial motivation for the acts or omissions alleged.

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Review, 889 F.2d at 19, with conduct which, on its face, may as likely stem from negligence and incompetence as from racial animus. This is insufficient to state a claim of race-based discrimination. See *Correa-Martinez*, 903 F.2d at 53 (plaintiff not prevail simply by asserting an inequity and tacking on the self-serving conclusion that the defendant was motivated by discriminatory animus"). As we stated in *Dartmouth Review*:

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Gauzy generalities, unsupported conclusions, subjective characterizations, and problematic suppositions can sprout as easily as crabgrass in an imaginative litigant's (or lawyer's) word processor. Therefore, to avoid tarring defendants' reputations unfairly and to prevent potential abuses, we have consistently required plaintiffs to outline facts sufficient to convey specific instances of unlawful discrimination.

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assertions, periphrastic circumlocutions, unsubstantiated conclusions, or outright vituperation").

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As Judge's complaint contains no specific factual allegation which, alone or in combination with other well-pled facts, gives rise to a reasonable inference that defendants were motivated by anti-black racial animus rather than by other equally plausible factors at the time of the alleged omissions, we affirm the district court's dismissal of Count I of the Third Amended Complaint.

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The failure of Count I to state a claim is fatal to Count II. In Count II, Judge alleges that the City of Lowell violated her right to equal protection because it (1) failed to establish a custom and policy that prohibited discrimination on the basis of race in the discharge of the duties at issue, and (2) failed to recruit and train police officers in such a way as to ensure that they would not discriminate on the basis of race in the discharge of their duties.

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We have held that Judge failed sufficiently to allege any constitutional injury in Count I of the complaint. Thus, even if the City of Lowell failed to take adequate steps to prohibit discrimination and failed to recruit and train its police officers so as to ensure that they would not discriminate, there is no allegation in the complaint sufficient to show that such a policy caused harm to the plaintiff Judge who, for reasons already discussed, suffered no constitutional injury. A section 1983 claimant cannot recover unless the claimant also proves that the custom caused the resulting injury or deprivation of rights. See *Monell v. New York City Dep't of Social* of Count II was proper.

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This is not to say that Judge may be left without a remedy. Defendants' failure to act upon the information they discovered when they found Weems's body, along with their allegedly rude and insensitive behavior, could conceivably give rise to claims under Massachusetts law. Weems's wife, and perhaps other family members, may have viable state law claims against defendants arising from the handling of Weems's body, although we offer no opinion concerning that possibility. See *Soto v.* actionable under Puerto Rican law we leave, as we must, to others."), cert. denied, the allegations set forth in the complaint do not properly assert violations of the Equal Protection Clause of the Fourteenth Amendment.

44 B. Denial of Judge's Motion to Amend the Complaint

45 « back The district court denied Judge's motion for leave to file a Fourth Amended Complaint. Judge challenges the denial on appeal. We review the district court's [REDACTED] an abuse of discretion, and defer to the district court if any adequate reason for the denial is apparent on the record." Grant [REDACTED]

46 Under Federal Rule of Civil Procedure 15(a), a litigant may amend a pleading once as a matter of right before a responsive pleading is filed and subsequently by [REDACTED] to amend] shall be freely given when justice so requires,' [REDACTED] liberal amendment policy prescribed by Rule 15(a) does not mean that leave will be granted in all cases,' [REDACTED] (2d ed.1990). Where an amendment would be futile or would serve no legitimate [REDACTED] failure to cure deficiencies by amendments previously allowed' [REDACTED] leave to amend).

47 Judge amended her complaint three times prior to dismissal. After she filed her Second Amended Complaint, the court advised the parties of its doubt that Judge had set forth sufficient factual allegations to plead an inference of racial animus. Nevertheless, the court allowed Judge to file a Third Amended Complaint prior to ruling on defendants' then-pending motions to dismiss. In her Third Amended Complaint, Judge added two defendants. Judge also added several new paragraphs to the complaint that expanded on her allegation that the defendants had violated [REDACTED] or practice" of discrimination. As to the latter, Judge appended to the complaint newspaper articles concerning the Kasha Blount case. None of these amendments, however, added any non-conclusory factual allegations to support the conclusion that defendants' alleged omissions were motivated by racial animus. The district court dismissed the Third Amended Complaint, and we have concluded that it properly did so.

48 Judge sought leave to file a Fourth Amended Complaint. The district court denied Judge's motion without comment. The only difference between the Third Amended Complaint and the proposed Fourth Amended Complaint was the addition of a new paragraph that identified two reported cases from the Massachusetts Court of Appeals in which the victims, allegedly white, died under circumstances alleged to be similar to those of Weems. Judge alleged that these victims' cases resulted in a full investigation and prosecution because the victims, unlike Weems, were white.

49 These new allegations failed to cure the fundamental defect in Judge's complaint. The two reported decisions identified by Judge do not indicate which, if any, of the officer defendants were involved in the investigations. Nor do the opinions identify Dr. Feigin as the medical examiner in either case. Even assuming that the [REDACTED] in the present case, there is nothing in the reported opinions that remotely suggests that the performances of the government officials in those cases were motivated by the victims' race. The allegations involving these decisions do not supply the missing causal link between defendants' alleged omissions in this case and Judge's race. Even accepting the proposed amendments, Judge has alleged only that in one case (the Blount case in Dorchester) the officials acted improperly, while in two other cases the officials acted properly. Without more, she then attributes the